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|    |                                      | <p><i>Safeway Stores 23, Inc.</i> (1996) 42 Cal.App.4th 507, 529; <i>Glendale Redevelopment Agency v. Parks</i> (1993) 18 Cal.App.4th 1409, 1424.) The demurrer is thus <b>SUSTAINED</b> without leave to amend as to this cause of action.</p> <p><u>6th cause of action</u>, negligent repair: The economic loss rule does not apply in cases involving the negligent performance of services that results in foreseeable economic loss. (<i>North American Chemical Co. v. Superior Court</i> (1997) 59 Cal.App.4th 764, 777, 781-785; <i>Sabicer v. Ford Motor Company</i> (C.D. Cal. 2019) 362 F.Supp.3d 837, 840; <i>Madison v. Ford Motor Company</i> (E.D. Cal., Aug. 6, 2019, No. 2:19-CV-00853 WBS DB) 2019 WL 3562386, at *2.) Further, Plaintiffs do not allege that repair obligations arose out of a contract between Plaintiff and defendant Orange Coast Chrysler Jeep Dodge Ram Fiat. Thus, it cannot be said that Plaintiff's negligent repair claim is barred by the economic loss rule. The demurrer is thus <b>OVERRULED</b> as to this cause of action.</p> <p style="text-align: center;"><b>Motion to Strike</b></p> <p><u>Punitive damages</u>: As discussed above, Plaintiff has not alleged a viable fraud cause of action. Punitive damages are thus not available based on the fraud claim. Plaintiff's remaining allegations relate to statutory violations under the Song Beverly Act. By seeking a civil penalty under <i>Civil Code section 1794</i>, Plaintiff waived punitive damages under Civil Code section 3294. (<i>Troensegaard v. Silvercrest Industries, Inc.</i> (1985) 175 Cal.App.3d 218, 228.) The motion is therefore <b>GRANTED</b> without leave to amend as to punitive damages.</p> <p><u>Civil penalties</u>: The pre-suit notice requirements under <i>Code of Civil Procedure section 871.24, subdivision (k)</i> became operative on July 1, 2025. (<i>Code of Civ. Proc. § 871.24, subd. (k).</i>) Here, this action was initiated on June 24, 2025, before the effective date of the statute. (<i>McClung v. Employment Development Dept.</i> (2004) 34 Cal.4th 467, 475 [statutes operate prospectively only unless there is express language of retroactivity].) The motion is thus <b>DENIED</b> as to civil penalties.</p> <p><i>Counsel for Defendant shall give notice of this ruling.</i></p> |
| 8. | Andresen v. Watermeier<br>25-1507923 | <p>Before the Court is a demurrer and motion to strike filed by defendant David Watermeier as to the second amended complaint (SAC) filed by plaintiffs Jorin Andresen and Christina Compani. For the reasons set forth herein, the demurrer is <b>OVERRULED</b> and the motion to strike is <b>DENIED</b>.</p> <p style="text-align: center;"><b>Proof of Service Defective</b></p> <p>Initially, the proof of service at ROA 26 is insufficient. Although the proof of service states that the documents were served by email, there is no email address listed to which the documents were sent.</p> <p style="text-align: center;"><b>Demurrer</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |

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|    |                              | <p><i>CRC Rule 3.1320</i> states that "Each ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses." Defendant does not demurrer to a specific cause of action but instead states in the notice that the demurrer is "on the ground that the Second Amended Complaint fails to state facts sufficient to constitute a cause of action against these(sic) defendant." (Demurrer at 2:18-19) "A demurrer which attacks an entire pleading should be overruled if one of the counts therein is not vulnerable to the objection." (<i>Bacon v. Wahrhaftig</i> (1950) 97 Cal. App. 2d 599, 605)</p> <p>Here, the first cause of action for Breach of the Buy Sell Agreement is sufficiently pled. "To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff." (<i>Richman v. Hartley</i> (2014) 224 Cal.App.4th 1182, 1186.) Plaintiffs allege that on 1/25/25, they entered into a written buy-sell agreement with Watermeier. (SAC ¶17) Plaintiffs allege they performed all obligations but that Watermeier breached the agreement when he prematurely declared the agreement null and void. (SAC ¶¶ 18, 20, 35, 36)</p> <p>Accordingly, the demurrer is <b>OVERRULED</b>.</p> <p style="text-align: center;"><b>Motion to Strike</b></p> <p><i>CRC Rule 3.1322</i> requires that "A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense."</p> <p>Here, the notice does not identify any portion of the complaint sought to be stricken. Instead the notice states that defendant seeks to strike the entire complaint. However, the motion does not provide authority which would support striking the entire complaint. Assertions unsupported by legal authority are presumed to lack merit. (<i>Atchley v. City of Fresno</i> (1984) 151 Cal.App.3d 635, <i>In Re Marriage of Nichols</i> (1994) 27 Cal.App.4th 661, 673; <i>Utz v. Aureguy</i> (1952) 109 Cal.App.2d 803, 807)</p> <p>Accordingly, the motion to strike is <b>DENIED</b>.</p> <p>Defendant shall file his answer to the second amended complaint within 10 days.</p> <p><i>Plaintiffs shall give notice.</i></p> |
| 9. | Yuh v. Western<br>24-1388773 | <p>Defendant Tin Westen's unopposed motion for summary judgment on the complaint of plaintiff Lundar Yuh is <b>GRANTED</b>.</p> <p>Defendant has met his initial burden to show Plaintiff cannot meet the elements of his legal malpractice claim, including that he would have</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |